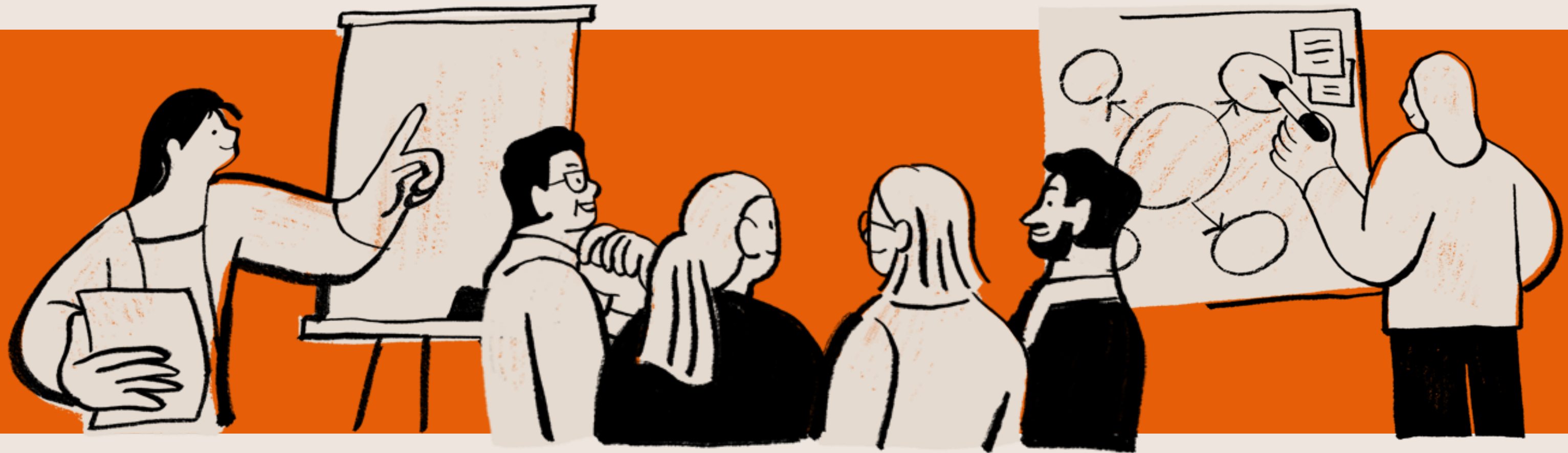


Module 16:

OSH LEGISLATION

Responses to OSH Issues / Concerns



GROUP 14:

CAASI, JOHN RUSS MARBIN

CABILES, CHROMWELL

CAYME, JUSTICE JEWEL

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Occupational Safety and Health (OSH) Legislation and Enforcement are key components of the government program to protect workers from accidents and illnesses.

Organizations involved:

- Department of Labor and Employment (DOLE)
- Occupational Safety & Health Center (OSHC)
- Employees Compensation Commission (ECC)
- Bureau of Working Conditions (BWC)

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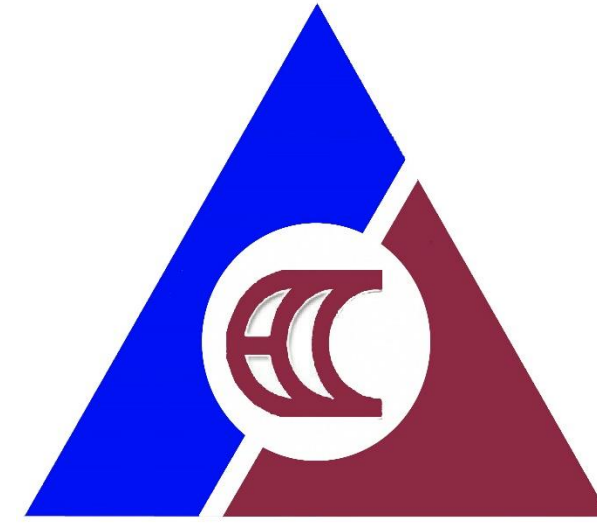
DEPARTMENT OF LABOR
AND EMPLOYMENT

DOLE

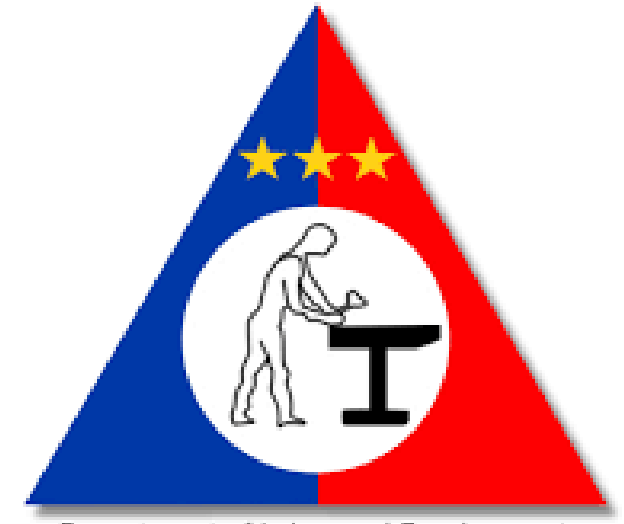


OSHC

OSHC



ECC



Department of Labor and Employment
Bureau of Working Conditions

BWC

OBJECTIVES

Identify laws and policies which govern OSH administration in the Philippines



Determine government agencies which administer such laws

Explain the various strategies for OSH administration





OSH ADMINISTRATION

PREVENTION:

Executive Order (E.O.) 307

ENFORCEMENT:

Admin Code 1987

COMPENSATION / REHABILITATION:

Presidential Decree (P.D.) 626

UPDATING HEALTH & SAFETY & OTHER RELATED OSH POLICIES:

Admin Code 1987





E.O. 307:

Created the OSH Center to safeguard Filipino workers. And to strengthen the government's capability to prevent & reduce work related injuries, illnesses & deaths.

ADMIN CODE 1987:

Legal backbone on how executive departments, agencies and offices (like DOLE, DOH, BWC) operate today.

P.D.626

The law that governs Employees Compensation Program (ECP).



1. LABOR CODE OF THE PHILIPPINES

❖ Article 162 – Safety and health standards

Mandates the DOLE Secretary to set and enforce occupational safety and health standards to protect workers from hazards and ensure safe working conditions.



POLICY FRAMEWORK

1. LABOR CODE OF THE PHILIPPINES

Example of a violation of Article 162:

DOLE issued a Work Stoppage Order at a Bonifacio Global City construction site after a worker was killed and several others injured when a steel structure collapsed. This accident showed a violation of occupational safety standards, and DOLE acted under Article 162 to halt operations until safety measures were corrected.



POLICY FRAMEWORK

1. LABOR CODE OF THE PHILIPPINES

❖ Article 164 – Training programs

Mandates DOLE to implement training programs that educate workers and employers on occupational safety and health standards to prevent workplace accidents and promote safe working conditions.



POLICY FRAMEWORK

1. LABOR CODE OF THE PHILIPPINES

❖ Article 164 – Administration of safety and health laws

Mandates the DOLE Secretary to administer and enforce occupational safety and health laws (training programs), ensuring safe and healthful working conditions in all workplaces.



POLICY FRAMEWORK

1. LABOR CODE OF THE PHILIPPINES

Example where Article 164 was violated:

A fire broke out at the NCCC Mall in Davao City, killing 38 call center workers trapped inside. DOLE's investigation revealed that the company failed to fully comply with occupational safety and health requirements. Safety committees were either inactive or ineffective, and workers had not been adequately trained in emergency procedures.



POLICY FRAMEWORK

1. LABOR CODE OF THE PHILIPPINES

❖ Article 128 – Visitorial and enforcement power

Grants DOLE the power to enter workplaces, inspect records, and issue compliance orders when labor laws are violated.



POLICY FRAMEWORK

2. PRESIDENTIAL DECREE 626

- ❖ Protects workers from financial burden due to work related illness/ injury.
- ❖ Covers both public and private employees
- ❖ Administered by SSS and GSIS
- ❖ Provides medical, income, disability and death benefits



POLICY FRAMEWORK

2. PRESIDENTIAL DECREE 626



POLICY FRAMEWORK

3. P.D. 856 – CODE ON SANITATION

- ❖ **Consolidates all sanitation laws into one code.**
- ❖ **Ensures safe water, food, and waste management.**
- ❖ **Assigns responsibility to local governments for sanitation enforcement.**
- ❖ **Protects public health through modern hygiene standards.**



POLICY FRAMEWORK

3. P.D. 856 – CODE ON SANITATION



POLICY FRAMEWORK

4. REPUBLIC ACT 8504

- ❖ **Philippine AIDS Prevention and Control Act of 1998**
- ❖ **A law that promotes HIV/AIDS awareness, ensures voluntary and confidential testing, protects against discrimination, and strengthens national programs to support affected individuals.**



5. REPUBLIC ACT 9165

An act instituting the Comprehensive Dangerous Drugs Act of 2002 repealing Republic Act No 6425, otherwise known as the Dangerous Drugs Act of 1972, as amended, providing funds therefore, and for other purposes.



POLICY FRAMEWORK

6. REPUBLIC ACT 6969

An act to control toxic substances and hazardous and nuclear wastes, providing penalties for violations thereof, and for other purposes.

2 firms face raps over illegal importation of hazardous materials

By Ferdinand Patinio

📅 June 1, 2021, 6:57 pm

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MANILA – Two importers are facing criminal complaints before the Department of Justice (DOJ), the Bureau of Customs (BOC) said on Tuesday.

In a statement, the bureau said separate cases were filed on Monday against the companies for the illegal importation of PHP2.4 million worth of chemicals and medical equipment.

The first criminal complaint is against Construction Supplies Trading and its customs broker for the importation of 180 drums of sodium cyanide worth PHP1.45 million on Feb. 23, 2021, at the Manila International Container Port (MICP).

The said goods arrived without the necessary import permit or clearance from the Environmental Management Bureau of the Department of Environment and Natural Resources (EMB-DENR) in violation of Republic Act No. 10863, otherwise known as the Customs Modernization and Tariff Act (CMTA); Customs Memorandum Order 09-2015 (CMO 09-2015); Republic Act 6969 or the “Toxic Substances and Hazardous and Nuclear Wastes Control Act of 1990” as implemented by DENR Administrative Order No. 1997-39 (DAO 1997-39) otherwise known as “Chemical Control Order for Cyanide and Cyanide Compounds”; DENR Administrative Order 2005-27 (DAO 2005-27); EMB Memorandum Circular No. 2005-003 and Art. 172 in relation to Art. 171 of the Revised Penal Code, as amended.



POLICY FRAMEWORK

7. LOCAL GOVERNMENT ACT (RA 7160)

Decentralizes some national government functions to LGU's. Example: Inspection of buildings, health care provisions, etc.

8. EXECUTIVE ORDER 307

An Executive Order issued during President Corazon C. Aquino's term, establishing the Occupational Safety and Health Center in the Employees' Compensation Commission" attached agency of the Department of Labor and Employment as the national focal point on OSH trainings, researches, information and technical services.

POLICY FRAMEWORK

QUESTION NO. 1

Which article of the Labor Code of the Philippines mandates the DOLE Secretary to set and enforce occupational safety and health standards to protect workers from hazards and ensure safe working conditions?

ANSWER: ARTICLE 162 – SAFETY AND HEALTH STANDARDS

OSHS is actually a codification of all safety and health rules and regulations, including safety orders then in existence at the time.

OSHS has many provisions. To some extent, many of its provisions have already been discussed in the technical discussions that have been undertaken in the previous modules.



OCCUPATIONAL SAFETY AND HEALTH STANDARDS (OSHS)

SELECTED OSHS PROVISIONS

RULE 1001 – PURPOSE AND SCOPE

Rule 1001 emphasizes workplace safety by protecting employees from injury, sickness, or death. Its goal is to conserve manpower, safeguard lives and property, and promote workers' well-being while supporting national development. It applies to all places of employment unless exempted.



SELECTED OSHS PROVISIONS

RULE 1005 – DUTIES OF EMPLOYERS, WORKERS AND OTHER PERSONS



Rule 1005 defines the duties of employers, workers, and others to ensure safe workplaces. Employers must provide hazard-free environments and training, workers must follow safeguards and report risks, and contractors/visitors must comply with standards. It applies to all persons conducting business inside a workplace

SELECTED OSHS PROVISIONS

RULE 1012.02 – ABATEMENT OF IMMINENT DANGER

Rule 1012.02 focuses on abating imminent danger by protecting workers from conditions that could cause death or serious harm. It requires immediate stoppage or correction of hazards, with enforcement officers reporting risks, Regional Directors issuing orders, and employers taking protective measures until dangers are removed. It applies to all workplaces where imminent danger exists.



SELECTED OSHS PROVISIONS

RULE 1013 – HAZARDOUS WORKPLACES



**Caution
Trip Hazard**



Rule 1013 identifies hazardous workplaces and ensures safety through training, protective equipment, and strict standards. Employers and workers must recognize risks such as chemicals, radiation, biological agents, and dangerous tools. It applies to high-risk industries like construction, mining, logging, quarrying, blasting, firefighting, mechanized farming, and those involving explosives or harmful agents.

SELECTED OSHS PROVISIONS

RULE 1043.01 – HEALTH AND SAFETY COMMITTEE

Rule 1043.01 requires all establishments to form a Health and Safety Committee to prevent accidents, ensure compliance with DOLE regulations, and coordinate with inspectors. The committee develops safety programs, reviews inspections, and maintains disaster contingency plans.



SELECTED OSHS PROVISIONS

The Labor Code further classifies committees based on workforce size:

- **Type A:** Workplaces with over 400 workers (includes top management, safety officers, and worker representatives).
- **Type B:** Workplaces with 201–400 workers.
- **Type C:** Workplaces with 51–200 workers.
- **Type D:** Workplaces with 50 or fewer workers.



SELECTED OSHS PROVISIONS

RULE 1050 – NOTIFICATION AND KEEPING OF RECORDS OF ACCIDENTS AND/OR OCUPATIONAL ILLNESS

This rule requires employers to notify the Department of Labor and Employment (DOLE) and maintain records of all workplace accidents and occupational illnesses. Its purpose is to ensure accountability, provide accurate documentation, and allow proper monitoring of workplace safety conditions. It applies to all establishments where accidents, illnesses, or dangerous occurrences may result in disability, death, or permanent harm



SELECTED OSHS PROVISIONS

RULE 1050 – NOTIFICATION AND KEEPING OF RECORDS OF ACCIDENTS AND/OR OCCUPATIONAL ILLNESS

Example where Rule 1050 was violated:

Kentex Slipper Factory Fire (Valenzuela, 2015)

- **Failure to Notify Properly:** Reports showed that Kentex did not immediately notify DOLE about the fire and casualties, which is a direct violation.
- **Poor Record Keeping:** The factory did not maintain proper records of occupational hazards and accidents, making it harder to track risks before the tragedy.
- **Non-compliance with Reporting:** Survivors and families testified that many safety incidents before the fire were not documented or reported to DOLE.



SELECTED OSHS PROVISIONS

RULE 1053.01 – REPORT REQUIREMENTS

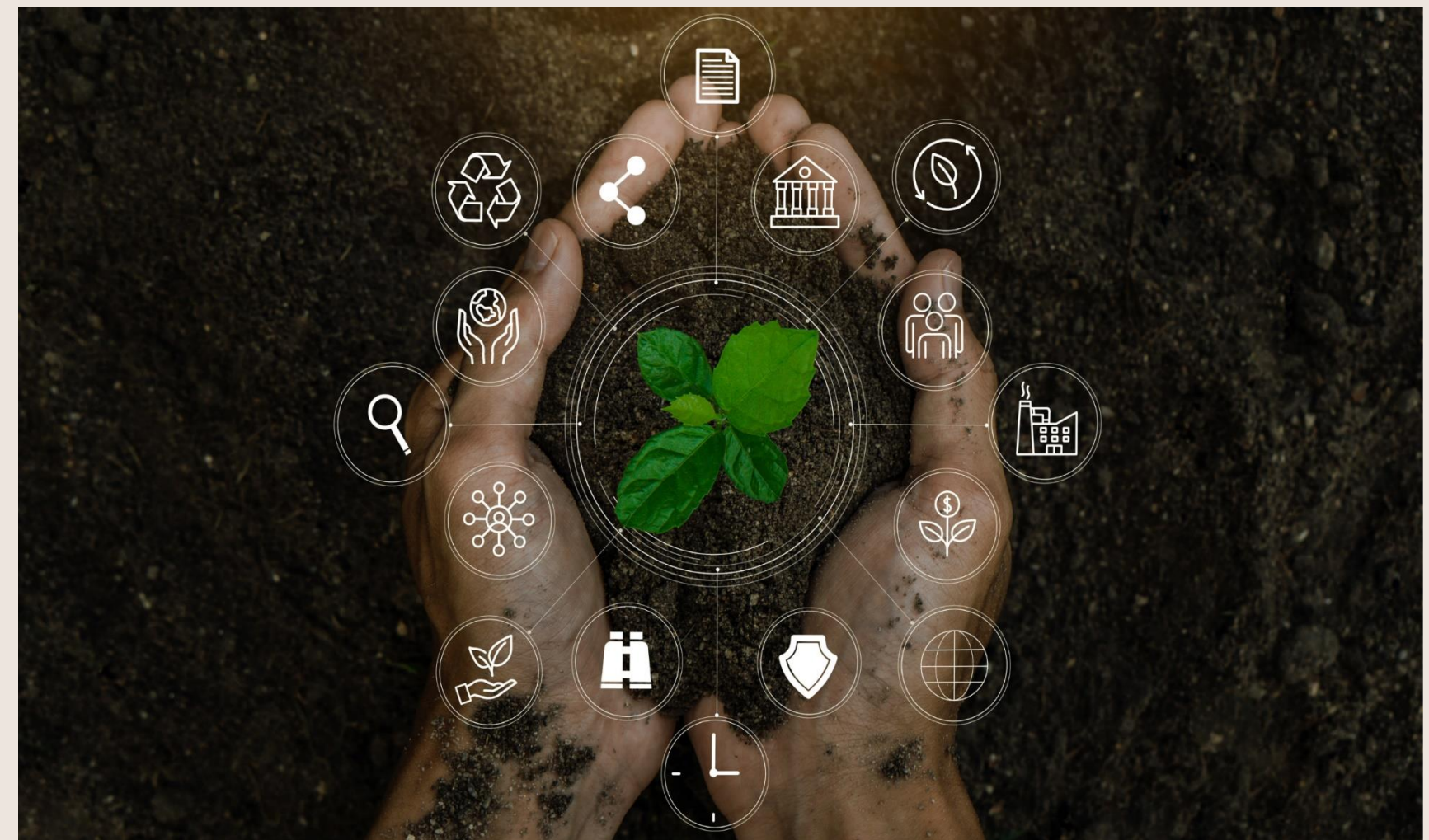
This subsection specifies the detailed reporting obligations under Rule 1050. Employers must submit formal reports of accidents or illnesses by the 20th of the following month, notify the Regional Labor Office within 24 hours in cases of death or permanent disability, and cooperate in investigations conducted within 48 hours. These requirements ensure timely communication, accurate records, and immediate corrective action to protect workers.



SELECTED OSHS PROVISIONS

RULE 1070 – OCCUPATIONAL HEALTH AND ENVIRONMENTAL CONTROL

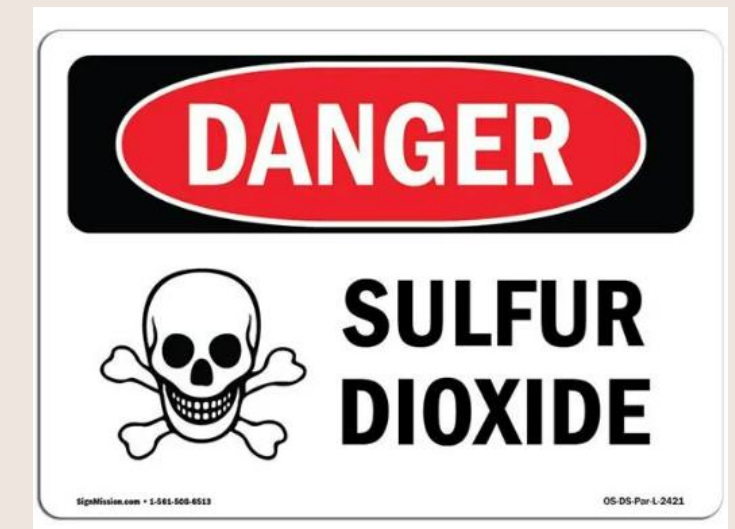
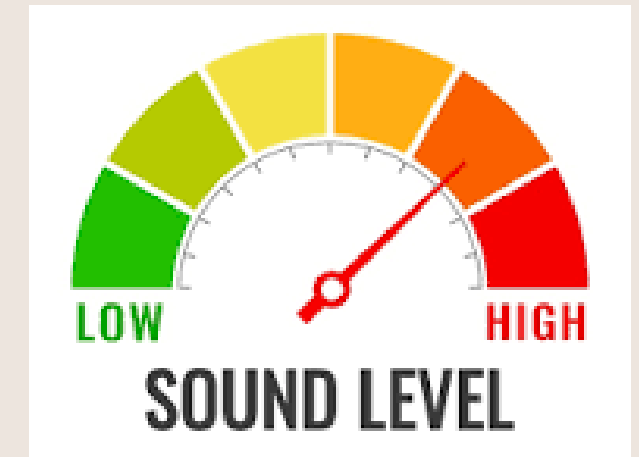
It is the basis for the conduct of work environment measurements (WEM) by the OSHC. It provides for certain values on the permissible level exposures of many contaminants and other physical hazards.



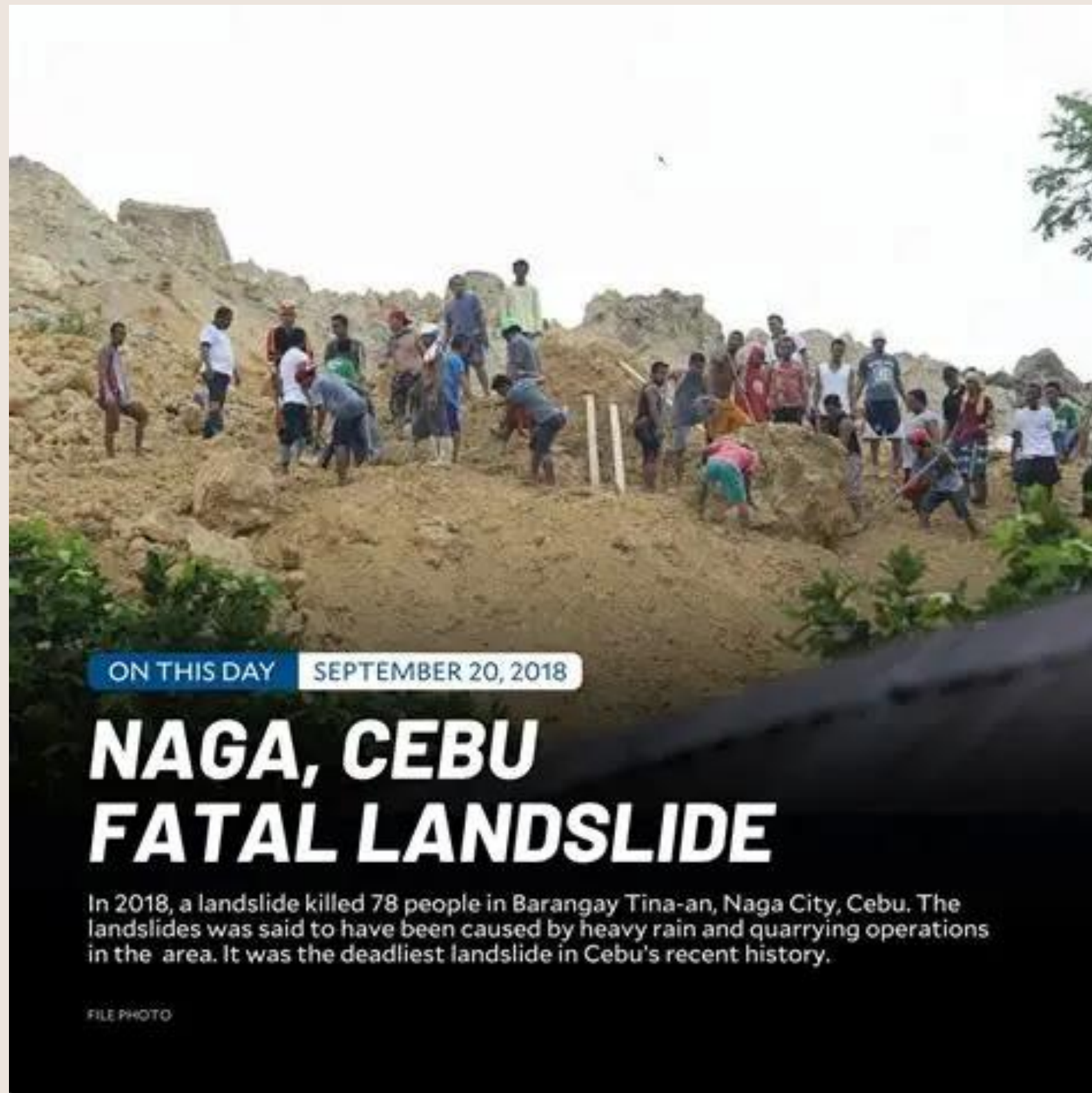
SELECTED OSHS PROVISIONS

Examples of Permissible Exposure Limits (based on DOLE OSHS tables)

- **Noise:**
 - 90 dB for 8 hours (continuous exposure).
 - Higher noise levels allowed only for shorter durations (e.g., 115 dB for 15 minutes).
- **Carbon Monoxide (CO):**
 - 50 ppm (parts per million) as an 8-hour time-weighted average.
- **Sulfur Dioxide (SO₂):**
 - 5 ppm (8-hour TWA).
- **Lead (inorganic dusts/fumes):**
 - 0.05 mg/m³ (8-hour TWA).
- **Asbestos (all forms):**
 - 2 fibers per cubic centimeter of air (8-hour TWA).
- **Heat Stress:**
 - Thresholds depend on workload (light, moderate, heavy) and wet bulb globe temperature (WBGT) index.



SELECTED OSHS PROVISIONS



Example of Rule 1070 violations in the Philippines was the 2018 *Naga City quarry landslide* in Cebu, where unsafe dust exposure and poor environmental controls were reported. DOLE and OSHC investigations found that workers were exposed to excessive levels of silica dust and noise without proper monitoring or protective measures, violating occupational health standards under Rule 1070. This incident made national headlines because dozens of workers and residents were killed or injured.

QUESTION NO. 2

What rule emphasizes workplace safety by protecting employees from injury, sickness, or death?

ANSWER: RULE 1001 – PURPOSE AND SCOPE

SELECTED OSHS PROVISIONS

RULE 1080 – PERSONAL PROTECTIVE EQUIPMENT

Rule 1080 of the Philippine Occupational Safety and Health Standards (OSHS) covers Personal Protective Equipment (PPE) and Devices. It mandates employers to provide, maintain, and ensure the adequacy of PPE at no cost to workers, protecting them from hazardous conditions such as chemical, radiological, biological, or mechanical risks.



SELECTED OSHS PROVISIONS

RULE 1080 – PERSONAL PROTECTIVE EQUIPMENT

Example where Rule 1080 was violated:

❖ **Kentex Slipper Factory Fire
(Valenzuela, 2015)**

(no proper PPE). Workers were trapped due to locked exits and chemical mishandling.



SELECTED OSHS PROVISIONS

RULE 1081 – GENERAL PROVISION

This rule establishes the requirement for employers to provide personal protective equipment (PPE) to workers exposed to hazardous processes or environments. It ensures that employees are safeguarded against chemical, radiological, mechanical, or other risks that could cause injury or impair bodily functions.



SELECTED OSHS PROVISIONS

RULE 1081.01 – EMPLOYERS RESPONSIBILITY

Employers must furnish, at their own expense, protective equipment for the eyes, face, hands, and feet, as well as shields and barriers when necessary. Any deductions for loss or damage of PPE are governed by Article 114 of the Labor Code and Section 14, Rule VIII of the Omnibus Rules.



SELECTED OSHS PROVISIONS

RULE 1081.02 – DESIGN AND CONSTRUCTION

All PPE must be of approved design and construction, appropriate for the specific exposure and type of work being performed. This ensures that protective gear is reliable and effective in preventing harm.



SELECTED OSHS PROVISIONS

EXAMPLES OF APPROVED PPE BY EXPOSURE/WORK TYPE

- **Respiratory Hazards (dust, fumes, toxic gases)**

- *Approved PPE:* NIOSH-certified respirators, gas masks, or self-contained breathing apparatus (SCBA).
- *Work Examples:* Welding, spray painting, handling chemicals, confined space entry.



- **Eye Hazards (flying particles, chemical splashes, radiation)**

- *Approved PPE:* Safety goggles, face shields, welding helmets with proper shade lenses.
- *Work Examples:* Grinding, cutting, welding, laboratory chemical handling.



- **Hearing Hazards (noise exposure above permissible limits)**

- *Approved PPE:* Earplugs or earmuffs meeting ANSI/OSHA standards.
- *Work Examples:* Operating jackhammers, heavy machinery, construction sites.



SELECTED OSHS PROVISIONS

- **Head Hazards (falling objects, electrical contact)**

- *Approved PPE:* Hard hats (ANSI Z89.1 compliant), insulated helmets for electrical work.
- *Work Examples:* Construction, mining, electrical maintenance.



- **Hand Hazards (chemicals, cuts, heat)**

- *Approved PPE:* Chemical-resistant gloves (nitrile, neoprene), cut-resistant gloves, heat-resistant gloves.
- *Work Examples:* Handling corrosives, working with sharp tools, foundry work.



- **Foot Hazards (falling objects, electrical hazards, slippery surfaces)**

- *Approved PPE:* Steel-toe safety shoes, dielectric boots, slip-resistant footwear.
- *Work Examples:* Warehousing, electrical work, food processing plants.



- **Body Hazards (chemical splashes, heat, radiation)**

- *Approved PPE:* Aprons, coveralls, chemical-resistant suits, flame-retardant clothing, lead aprons (for radiation).
- *Work Examples:* Chemical plants, foundries, radiology labs.



SELECTED OSHS PROVISIONS

RULE 1081.03 – MAINTENANCE AND ADEQUACY

Employers are responsible for ensuring the adequacy and proper maintenance of PPE in the workplace. Protective equipment must remain in good condition and suitable for continued use.



SELECTED OSHS PROVISIONS

RULE 1081.04 – MANDATORY PROTECTION

No worker shall be exposed to hazardous environmental conditions without appropriate protection. This provision guarantees that safety measures are always in place before workers face potential risks



SELECTED OSHS PROVISIONS

RULE 1980 – AUTHORITY OF LOCAL GOVERNMENT

This rule grants local government units the authority to enforce occupational safety and health standards within their jurisdiction. It ensures that inspections and compliance monitoring are carried out at the local level to protect workers and workplaces.



SELECTED OSHS PROVISIONS

RULE 1981.1 – TYPES OF INSPECTION

Inspection activities are divided into two categories:

Technical Safety Inspection – Focused on equipment such as boilers, pressure vessels, internal combustion engines, electrical installations, elevators, hoisting equipment, and other mechanical devices to ensure their safe operation.

General Safety Inspection – Concerned with the overall work environment, including machinery not covered by technical inspections, adequacy of workspace, ventilation, lighting, work procedures, storage, and other safety and health hazards.

SELECTED OSHS PROVISIONS

RULE 1990 – FINAL PROVISIONS

This rule consolidates the enforcement of occupational safety and health standards, ensuring that all workplaces comply with established regulations. It emphasizes the importance of consistent application of safety measures across industries.



SELECTED OSHS PROVISIONS

RULE 1995 – PENAL PROVISIONS

Violations of the OSHS provisions are subject to penalties as prescribed by law. This ensures accountability among employers, workers, and other responsible parties, reinforcing compliance with workplace safety standards.



GOVERNMENT RESPONSES ASIDE FROM ENFORCEMENT

With regards to government legislation as a whole, instructor reminds participants that enforcement is only one response but not the only response of the government. Such approaches include:

- **Zero Accident Program (ZAP)**
- **Employees' Compensation Program (ECP)**
- **Work Improvement in Small Enterprises (WISE)**
- **Program on OSH in the Informal sector**
- **OSH in Schools**
- **Child Labor**
- **Quick Reaction Teams like Work ALERT, medical surveillance on SJS, and many others.**

QUESTION NO. 3

This rule establishes the requirement for employers to provide personal protective equipment (PPE) to workers exposed to hazardous processes or environments.

ANSWER: RULE 1081 – GENERAL PROVISION



THANK YOU

GUESS THE LOGO!!!

ACTIVITY

GUESS THE LOGO?



**DOLE – Department of Labor and
Employment**

LOGO NO. 1

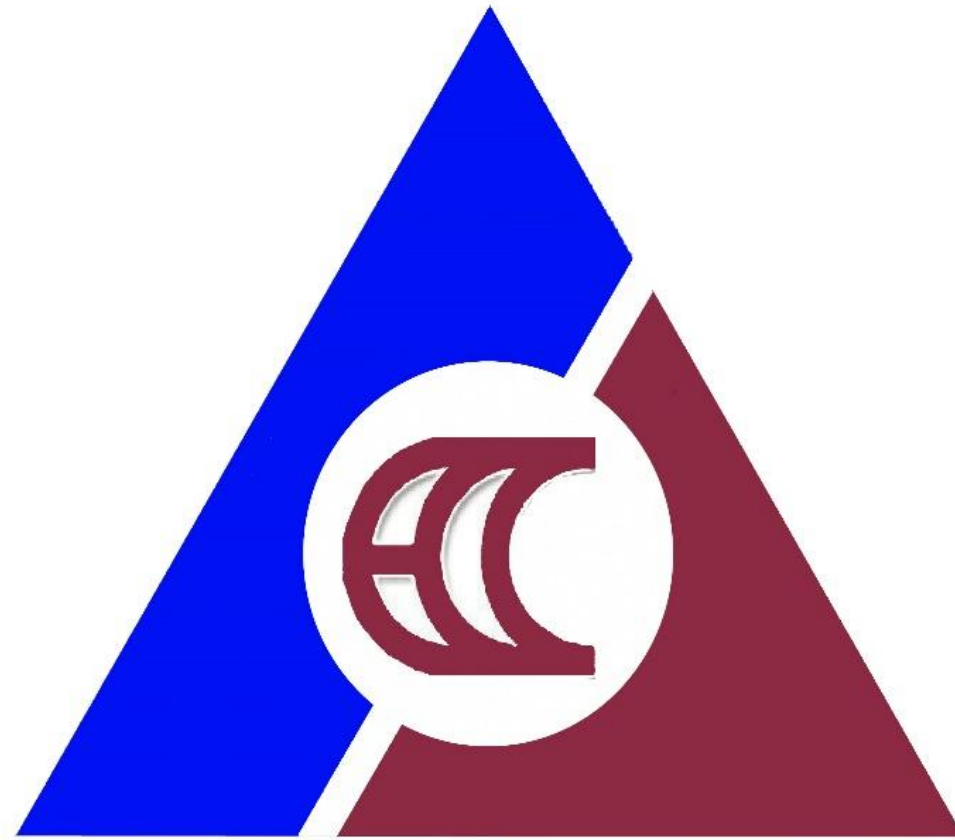
GUESS THE LOGO?



**OSHC – Occupational Health and Safety
Center**

LOGO NO. 2

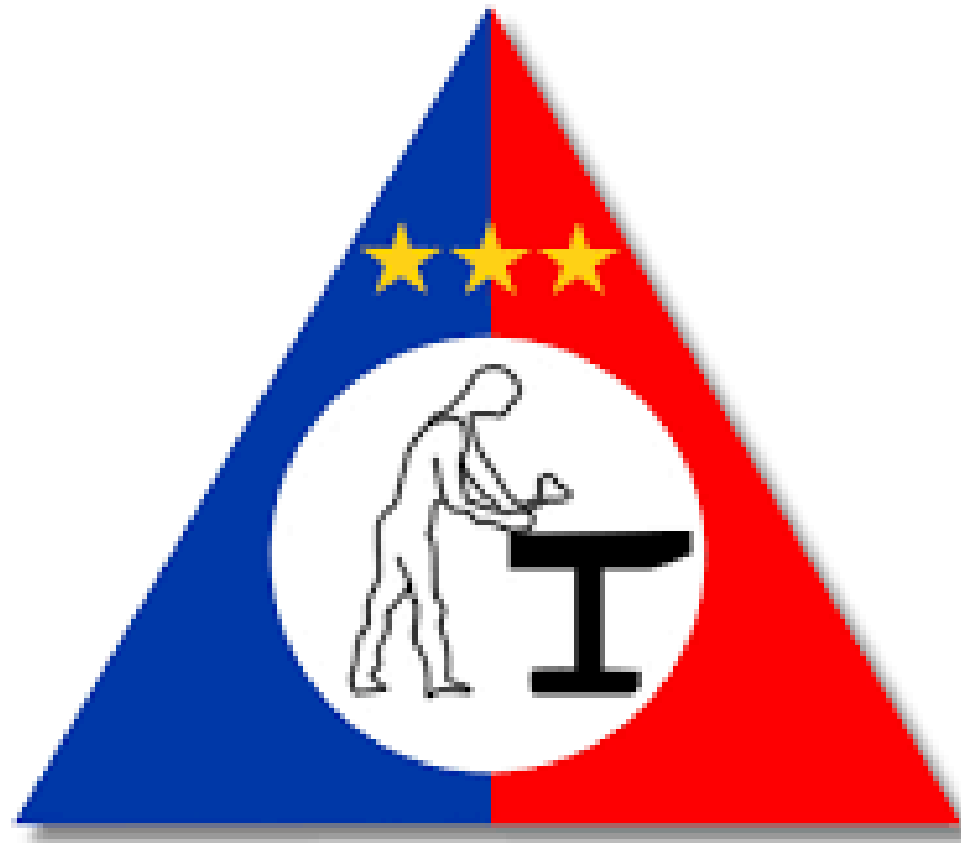
GUESS THE LOGO?



**ECC – Employees Compensation
Commission**

LOGO NO. 3

GUESS THE LOGO?



BWC – Bureau Of Working Conditions

LOGO NO. 4